

IN THE HIGH COURT OF TANZANIA

JUDGE DODDGE

CRIMINAL APPEAL NO. 19 OF 1990

FROM THE DECISION OF THE DISTRICT COURT
OF KIMBOI AT KIMBOI IN CRIMINAL CASE
NO. 156 OF 1986.

BEFORE: J.S. KIMENYA., PRINCIPAL DISTRICT
MAGISTRATE.

SILION MUGEN APPELLANT

VERSUS

THE REPUBLIC RESPONDENT

J U D G M E N T

MAINIA, J:

The appellant and another person who was the first accused, were jointly convicted of stealing, and they were each sentenced to three years imprisonment. The first accused did not appeal.

The evidence was short. The appellant was an office attendant at Kiomboi Nursing Training Centre. The first accused was a peasant and resident of old Kiomboi. On 23 October 1986 a bed and a sink were stolen from the Training Centre. In a search conducted by the police on 25 October 1986, in the first accused's house, the stolen properties were recovered therein. The first accused alleged that the properties were sent to his house by the appellant. The appellant denied that he sent those properties to the first accused. There was no other evidence to connect the appellant with the theft.

Clearly, the allegation by the first accused that he received the stolen properties was evidence of an accomplice and that alone could not be a basis for conviction. The first accused had every reason to shift the blame to someone else to save himself. He was found with the stolen properties, and it was unsafe to convict the appellant merely because he was mentioned by the first accused. In the absence of some other evidence, the conviction cannot stand.

This appeal is allowed. The conviction, which is not supported by the Republic, is quashed, and the sentence is set aside.

The appellant who was convicted on 10 March 1989 has already served the sentence. No order for his release is being made.

M. J. Maina

..... M. J. MAINA
..... JUDGE

AT DODOMA

20 November 1992

Mr. Kifunda, State Attorney, for the Republic.

Appellant absent.